

		the trial court fails to make the required findings, the order is deficient and cannot support sealing”). Clerk to give notice.
6	Cruz v. Pacific Life Insurance Company 2025-01517146	Off calendar.
7	Davis v. Insight Psychology and Addiction, Inc. 2023-01319920	<u>Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for preliminary approval of an \$355,000 class action and PAGA settlement. In the October 16, 2025 order (ROA 135), the court stated that the “Release by Participating Class Members” provision in paragraph 5.2 was overbroad. The court stated that the release of the class members’ claims must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. In the January 29, 2026 order (ROA 147), the court stated that the “Release by Participating Class Members” in the amendment to the settlement agreement remained overbroad. The court stated that, in the second sentence, the phrase beginning with “and all other claims” to the end of the sentence should be removed. Plaintiff’s counsel states that defendant has declined to make the revision to the “Release by Participating Class Members” ordered by the court in the January 29, 2026 order and has otherwise not cooperated with plaintiff’s efforts to prepare the supplemental filings. Supp. Manus Decl. (ROA 158) ¶¶ 3-8. In addition to the above, the parties have not submitted a revision of paragraph 7.8.4 as ordered in the January 29, 2026 order (ROA 147, No. 2) nor have they submitted a revised notice (ROA 147, Nos. 5, 6) or a revised proposed order (ROA 147, Nos. 7, 8). Under these circumstances, the court has no alternative but to deny without prejudice plaintiff’s motion for preliminary approval. A status conference is scheduled for <u>August 27, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. If plaintiff files another motion for preliminary approval before August 27, 2026, the court may vacate the status conference. If the case remains unresolved as of August 27, 2026, the parties’ joint status conference statement should set forth, <i>inter alia</i>, their proposed schedule(s) for briefing and hearing the class certification motion. Plaintiff to give notice.
8	Gershfeld v. Home Depot U.S.A., Inc., et al. 2024-01409225	Off calendar.